

SENATE No. 1506

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a physical therapy licensure compact.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>6/2/2025</i>

SENATE No. 1506

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1506) of Sal N. DiDomenico for legislation to establish a physical therapy licensure compact. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2233 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a physical therapy licensure compact.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Laws, as appearing in the 2022 Official Edition, are hereby
2 amended by inserting after chapter 112 the following new chapter:-

3 CHAPTER 112A PHYSICAL THERAPY LICENSURE COMPACT

4 Section 1. PURPOSE

5 The purpose of this compact is to facilitate interstate practice of physical therapy with the
6 goal of improving public access to physical therapy services. The practice of physical therapy
7 occurs in the state where the patient/client is located at the time of the patient/client encounter.
8 The compact preserves the regulatory authority of states to protect public health and safety
9 through the current system of state licensure.

10 This compact is designed to achieve the following objectives:

- 11 1. Increase public access to physical therapy services by providing for the mutual
12 recognition of other member state licenses;
- 13 2. Enhance the states' ability to protect the public's health and safety;
- 14 3. Encourage the cooperation of member states in regulating multi-state physical
15 therapy practice;
- 16 4. Support spouses of relocating military members;
- 17 5. Enhance the exchange of licensure, investigative, and disciplinary information
18 between member states; and
- 19 6. Allow a remote state to hold a provider of services with a compact privilege in
20 that state accountable to that state's practice standards.

21 Section 2. DEFINITIONS

22 As used in this compact, and except as otherwise provided, the following definitions shall
23 apply:

- 24 1. "Active Duty Military" means full-time duty status in the active uniformed
25 service of the United States, including members of the National Guard and Reserve on active
26 duty orders pursuant to 10 U.S.C. Section 1209 and 1211.
- 27 2. "Adverse Action" means disciplinary action taken by a physical therapy licensing
28 board based upon misconduct, unacceptable performance, or a combination of both.

3. “Alternative Program” means a non-disciplinary monitoring or practice remediation process approved by a physical therapy licensing board. This includes, but is not limited to, substance abuse issues.

4. “Compact privilege” means the authorization granted by a remote state to allow a licensee from another member state to practice as a physical therapist or work as a physical therapist assistant in the remote state under its laws and rules. The practice of physical therapy occurs in the member state where the patient/client is located at the time of the patient/client encounter.

5. “Continuing competence” means a requirement, as a condition of license renewal, to provide evidence of participation in, and/or completion of, educational and professional activities relevant to practice or area of work.

6. “Data system” means a repository of information about licensees, including examination, licensure, investigative, compact privilege, and adverse action.

7. “Encumbered license” means a license that a physical therapy licensing board has limited in any way.

8. “Executive Board” means a group of directors elected or appointed to act on behalf of, and within the powers granted to them by, the Commission.

9. “Home state” means the member state that is the licensee’s primary state of residence.

10. “Investigative information” means information, records, and documents received or generated by a physical therapy licensing board pursuant to an investigation.

11. “Jurisprudence Requirement” means the assessment of an individual’s knowledge of the laws and rules governing the practice of physical therapy in a state.

12. “Licensee” means an individual who currently holds an authorization from the state to practice as a physical therapist or to work as a physical therapist assistant.

13. “Member state” means a state that has enacted the compact.

14. “Party state” means any member state in which a licensee holds a current license or compact privilege or is applying for a license or compact privilege.

15. “Physical therapist” means an individual who is licensed by a state to practice physical therapy.

16. “Physical therapist assistant” means an individual who is licensed/certified by a state and who assists the physical therapist in selected components of physical therapy.

17. “Physical therapy,” “physical therapy practice,” and “the practice of physical therapy” mean the care and services provided by or under the direction and supervision of a licensed physical therapist.

18. “Physical Therapy Compact Commission” or “Commission” means the national administrative body whose membership consists of all states that have enacted the compact.

19. “Physical therapy licensing board” or “licensing board” means the agency of a state that is responsible for the licensing and regulation of physical therapists and physical therapist assistants.

20. “Remote State” means a member state other than the home state, where a licensee is exercising or seeking to exercise the compact privilege.

21. “Rule” means a regulation, principle, or directive promulgated by the Commission that has the force of law.

22. “State” means any state, commonwealth, district, or territory of the United States of America that regulates the practice of physical therapy.

Section 3. STATE PARTICIPATION IN THE COMPACT

A. To participate in the compact, a state must:

1. Participate fully in the Commission’s data system, including using the Commission’s unique identifier as defined in rules;

2. Have a mechanism in place for receiving and investigating complaints about licensees;

3. Notify the Commission, in compliance with the terms of the compact and rules, of any adverse action or the availability of investigative information regarding a licensee;

4. Fully implement a criminal background check requirement, within a time frame established by rule, by receiving the results of the Federal Bureau of Investigation record search on criminal background checks and use the results in making licensure decisions in accordance with Section 3.B.;

5. Comply with the rules of the Commission;

6. Utilize a recognized national examination as a requirement for licensure pursuant to the rules of the Commission; and

7. Have continuing competence requirements as a condition for license renewal.

B. Upon adoption of this statute, the member state shall have the authority to obtain biometric-based information from each physical therapy licensure applicant and submit this information to the Federal Bureau of Investigation for a criminal background check in accordance with 28 U.S.C. §534 and 42 U.S.C. §14616.

C. A member state shall grant the compact privilege to a licensee holding a valid unencumbered license in another member state in accordance with the terms of the compact and rules.

D. Member states may charge a fee for granting a compact privilege

Section 4. COMPACT PRIVILEGE

A. To exercise the compact privilege under the terms and provisions of the compact, the licensee shall:

1. Hold a license in the home state;

2. Have no encumbrance on any state license;

3. Be eligible for a compact privilege in any member state in accordance with Section 4D, G and H;

4. Have not had any adverse action against any license or compact privilege within the previous 2 years;

5. Notify the Commission that the licensee is seeking the compact privilege within a remote state(s);

6. Pay any applicable fees, including any state fee, for the compact privilege;

7. Meet any jurisprudence requirements established by the remote state(s) in which the licensee is seeking a compact privilege; and

8. Report to the Commission adverse action taken by any non-member state within 30 days from the date the adverse action is taken.

B. The compact privilege is valid until the expiration date of the home license. The licensee must comply with the requirements of Section 4.A. to maintain the compact privilege in the remote state.

C. A licensee providing physical therapy in a remote state under the compact privilege shall function within the laws and regulations of the remote state.

D. A licensee providing physical therapy in a remote state is subject to that state's regulatory authority. A remote state may, in accordance with due process and that state's laws, remove a licensee's compact privilege in the remote state for a specific period of time, impose fines, and/or take any other necessary actions to protect the health and safety of its citizens. The licensee is not eligible for a compact privilege in any state until the specific time for removal has passed and all fines are paid.

E. If a home state license is encumbered, the licensee shall lose the compact privilege in any remote state until the following occur:

1. The home state license is no longer encumbered; and

129 2. Two years have elapsed from the date of the adverse action.

130 F. Once an encumbered license in the home state is restored to good standing, the
131 licensee must meet the requirements of Section 4A to obtain a compact privilege in any remote
132 state.

133 G. If a licensee's compact privilege in any remote state is removed, the individual
134 shall lose the compact privilege in any remote state until the following occur:

135 1. The specific period of time for which the compact privilege was removed has
136 ended;

137 2. All fines have been paid; and

138 3. Two years have elapsed from the date of the adverse action.

139 H. Once the requirements of Section 4G have been met, the license must meet the
140 requirements in Section 4A to obtain a compact privilege in a remote state.

141 Section 5. ACTIVE DUTY MILITARY PERSONNEL OR THEIR SPOUSES

142 A licensee who is active duty military or is the spouse of an individual who is active duty
143 military may designate one of the following as the home state:

144 A. Home of record;

145 B. Permanent Change of Station (PCS); or

146 C. State of current residence if it is different than the PCS state or home of record.

147 Section 6. ADVERSE ACTIONS

148 A. A home state shall have exclusive power to impose adverse action against a
149 license issued by the home state.

150 B. A home state may take adverse action based on the investigative information of a
151 remote state, so long as the home state follows its own procedures for imposing adverse action.

152 C. Nothing in this compact shall override a member state's decision that
153 participation in an alternative program may be used in lieu of adverse action and that such
154 participation shall remain non-public if required by the member state's laws. Member states must
155 require licensees who enter any alternative programs in lieu of discipline to agree not to practice
156 in any other member state during the term of the alternative program without prior authorization
157 from such other member state.

158 D. Any member state may investigate actual or alleged violations of the statutes and
159 rules authorizing the practice of physical therapy in any other member state in which a physical
160 therapist or physical therapist assistant holds a license or compact privilege.

161 E. A remote state shall have the authority to:

162 1. Take adverse actions as set forth in Section 4.D. against a licensee's compact
163 privilege in the state;

164 2. Issue subpoenas for both hearings and investigations that require the attendance
165 and testimony of witnesses, and the production of evidence. Subpoenas issued by a physical
166 therapy licensing board in a party state for the attendance and testimony of witnesses, and/or the
167 production of evidence from another party state, shall be enforced in the latter state by any court
168 of competent jurisdiction, according to the practice and procedure of that court applicable to

subpoenas issued in proceedings pending before it. The issuing authority shall pay any witness fees, travel expenses, mileage, and other fees required by the service statutes of the state where the witnesses and/or evidence are located; and

3. If otherwise permitted by state law, recover from the licensee the costs of investigations and disposition of cases resulting from any adverse action taken against that licensee.

F. Joint Investigations

1. In addition to the authority granted to a member state by its respective physical therapy practice act or other applicable state law, a member state may participate with other member states in joint investigations of licensees.

2. Member states shall share any investigative, litigation, or compliance materials in furtherance of any joint or individual investigation initiated under the compact.

Section 7. ESTABLISHMENT OF THE PHYSICAL THERAPY COMPACT COMMISSION.

A. The compact member states hereby create and establish a joint public agency known as the Physical Therapy Compact Commission:

1. The Commission is an instrumentality of the compact states.

2. Venue is proper and judicial proceedings by or against the Commission shall be brought solely and exclusively in a court of competent jurisdiction where the principal office of the Commission is located. The Commission may waive venue and jurisdictional defenses to the extent it adopts or consents to participate in alternative dispute resolution proceedings.

190 3. Nothing in this compact shall be construed to be a waiver of sovereign immunity.

191 B. Membership, Voting, and Meetings

192 1. Each member state shall have and be limited to one (1) delegate selected by that
193 member state's licensing board.

194 2. The delegate shall be a current member of the licensing board, who is a physical
195 therapist, physical therapist assistant, public member, or the board administrator.

196 3. Any delegate may be removed or suspended from office as provided by the law of
197 the state from which the delegate is appointed.

198 4. The member state board shall fill any vacancy occurring in the Commission.

199 5. Each delegate shall be entitled to one (1) vote with regard to the promulgation of
200 rules and creation of bylaws and shall otherwise have an opportunity to participate in the
201 business and affairs of the Commission.

202 6. A delegate shall vote in person or by such other means as provided in the bylaws.
203 The bylaws may provide for delegates' participation in meetings by telephone or other means of
204 communication.

205 7. The Commission shall meet at least once during each calendar year. Additional
206 meetings shall be held as set forth in the bylaws.

207 C. The Commission shall have the following powers and duties:

208 1. Establish the fiscal year of the Commission;

- 209 2. Establish bylaws;
- 210 3. Maintain its financial records in accordance with the bylaws;
- 211 4. Meet and take such actions as are consistent with the provisions of this compact
212 and the bylaws;
- 213 5. Promulgate uniform rules to facilitate and coordinate implementation and
214 administration of this compact. The rules shall have the force and effect of law and shall be
215 binding in all member states;
- 216 6. Bring and prosecute legal proceedings or actions in the name of the Commission,
217 provided that the standing of any state physical therapy licensing board to sue or be sued under
218 applicable law shall not be affected;
- 219 7. Purchase and maintain insurance and bonds;
- 220 8. Borrow, accept, or contract for services of personnel, including, but not limited to,
221 employees of a member state;
- 222 9. Hire employees, elect or appoint officers, fix compensation, define duties, grant
223 such individuals appropriate authority to carry out the purposes of the compact, and to establish
224 the Commission's personnel policies and programs relating to conflicts of interest, qualifications
225 of personnel, and other related personnel matters;
- 226 10. Accept any and all appropriate donations and grants of money, equipment,
227 supplies, materials and services, and to receive, utilize and dispose of the same; provided that at
228 all times the Commission shall avoid any appearance of impropriety and/or conflict of interest;

229 11. Lease, purchase, accept appropriate gifts or donations of, or otherwise to own,
230 hold, improve or use, any property, real, personal or mixed; provided that at all times the
231 Commission shall avoid any appearance of impropriety;

232 12. Sell convey, mortgage, pledge, lease, exchange, abandon, or otherwise dispose of
233 any property real, personal, or mixed;

234 13. Establish a budget and make expenditures;

235 14. Borrow money;

236 15. Appoint committees, including standing committees composed of members, state
237 regulators, state legislators or their representatives, and consumer representatives, and such other
238 interested persons as may be designated in this compact and the bylaws;

239 16. Provide and receive information from, and cooperate with, law enforcement
240 agencies;

241 17. Establish and elect an Executive Board; and

242 18. Perform such other functions as may be necessary or appropriate to achieve the
243 purposes of this compact consistent with the state regulation of physical therapy licensure and
244 practice.

245 D. The Executive Board

246 The Executive Board shall have the power to act on behalf of the Commission according
247 to the terms of this compact

248 1. The Executive Board shall be composed of nine members:

- 249 a. Seven voting members who are elected by the Commission from the current
250 membership of the Commission;
- 251 b. One ex-officio, nonvoting member from the recognized national physical therapy
252 professional association; and
- 253 c. One ex-officio, nonvoting member from the recognized membership organization
254 of the physical therapy licensing boards.
- 255 2. The ex-officio members will be selected by their respective organizations.
- 256 3. The Commission may remove any member of the Executive Board as provided in
257 bylaws.
- 258 4. The Executive Board shall meet at least annually.
- 259 5. The Executive Board shall have the following Duties and responsibilities:
- 260 a. Recommend to the entire Commission changes to the rules or bylaws, changes to
261 this compact legislation, fees paid by compact member states such as annual dues, and any
262 commission compact fee charged to licensees for the compact privilege;
- 263 b. Ensure compact administration services are appropriately provided, contractual or
264 otherwise;
- 265 c. Prepare and recommend the budget;
- 266 d. Maintain financial records on behalf of the Commission;

267 e. Monitor compact compliance of member states and provide compliance reports to
268 the Commission;

269 f. Establish additional committees as necessary; and

270 g. Other duties as provided in rules or bylaws.

271 E. Meetings of the Commission

272 1. All meetings shall be open to the public, and public notice of meetings shall be
273 given in the same manner as required under the rulemaking provisions in Section 9.

274 2. The Commission or the Executive Board or other committees of the Commission
275 may convene in a closed, non-public meeting if the Commission or Executive Board or other
276 committees of the Commission must discuss:

277 a. Non-compliance of a member state with its obligations under the compact;

278 b. The employment, compensation, discipline or other matters, practices or
279 procedures related to specific employees or other matters related to the Commission's internal
280 personnel practices and procedures;

281 c. Current, threatened, or reasonably anticipated litigation;

282 d. Negotiation of contracts for the purchase, lease, or sale of goods, services, or real
283 estate;

284 e. Accusing any person of a crime or formally censuring any person;

- 285 f. Disclosure of trade secrets or commercial or financial information that is
286 privileged or confidential;
- 287 g. Disclosure of information of a personal nature where disclosure would constitute
288 a clearly unwarranted invasion of personal privacy;
- 289 h. Disclosure of investigative records compiled for law enforcement purposes;
- 290 i. Disclosure of information related to any investigative reports prepared by or on
291 behalf of or for use of the Commission or other committee charged with responsibility of
292 investigation or determination of compliance issues pursuant to the compact; or
- 293 j. Matters specifically exempted from disclosure by federal or member state statute.

294 3. If a meeting, or portion of a meeting, is closed pursuant to this provision, the
295 Commission's legal counsel or designee shall certify that the meeting may be closed and shall
296 reference each relevant exempting provision.

297 4. The Commission shall keep minutes that fully and clearly describe all matters
298 discussed in a meeting and shall provide a full and accurate summary of actions taken, and the
299 reasons therefore, including a description of the views expressed. All documents considered in
300 connection with an action shall be identified in such minutes. All minutes and documents of a
301 closed meeting shall remain under seal, subject to release by a majority vote of the Commission
302 or order of a court of competent jurisdiction.

303 F. Financing of the Commission

304 1. The Commission shall pay, or provide for the payment of, the reasonable
305 expenses of its establishment, organization, and ongoing activities.

2. The Commission may accept any and all appropriate revenue sources, donations, and grants of money, equipment, supplies, materials, and services.

3. The Commission may levy on and collect an annual assessment from each member state or impose fees on other parties to cover the cost of the operations and activities of the Commission and its staff, which must be in a total amount sufficient to cover its annual budget as approved each year for which revenue is not provided by other sources. The aggregate annual assessment amount shall be allocated based upon a formula to be determined by the Commission, which shall promulgate a rule binding upon all member states.

4. The Commission shall not incur obligations of any kind prior to securing the funds adequate to meet the same; nor shall the Commission pledge the credit of any of the member states, except by and with the authority of the member state.

5. The Commission shall keep accurate accounts of all receipts and disbursements. The receipts and disbursements of the Commission shall be subject to the audit and accounting procedures established under its bylaws. However, all receipts and disbursements of funds handled by the Commission shall be audited yearly by a certified or licensed public accountant, and the report of the audit shall be included in and become part of the annual report of the Commission.

G. Qualified Immunity, Defense, and Indemnification

1. The members, officers, executive director, employees and representatives of the Commission shall be immune from suit and liability, either personally or in their official capacity, for any claim for damage to or loss of property or personal injury or other civil liability caused by or arising out of any actual or alleged act, error or omission that occurred, or that the

person against whom the claim is made had a reasonable basis for believing occurred within the scope of Commission employment, duties or responsibilities; provided that nothing in this paragraph shall be construed to protect any such person from suit and/or liability for any damage, loss, injury, or liability caused by the intentional or willful or wanton misconduct of that person.

2. The Commission shall defend any member, officer, executive director, employee or representative of the Commission in any civil action seeking to impose liability arising out of any actual or alleged act, error, or omission that occurred within the scope of Commission employment, duties, or responsibilities, or that the person against whom the claim is made had a reasonable basis for believing occurred within the scope of Commission employment, duties, or responsibilities; provided that nothing herein shall be construed to prohibit that person from retaining his or her own counsel; and provided further, that the actual or alleged act, error, or omission did not result from that person's intentional or willful or wanton misconduct.

3. The Commission shall indemnify and hold harmless any member, officer, executive director, employee, or representative of the Commission for the amount of any settlement or judgment obtained against that person arising out of any actual or alleged act, error or omission that occurred within the scope of Commission employment, duties, or responsibilities, or that such person had a reasonable basis for believing occurred within the scope of Commission employment, duties, or responsibilities, provided that the actual or alleged act, error, or omission did not result from the intentional or willful or wanton misconduct of that person.

Section 8. DATA SYSTEM

A. The Commission shall provide for the development, maintenance, and utilization of a coordinated database and reporting system containing licensure, adverse action, and investigative information on all licensed individuals in member states.

B. Notwithstanding any other provision of state law to the contrary, a member state shall submit a uniform data set to the data system on all individuals to whom this compact is applicable as required by the rules of the Commission, including:

1. Identifying information;
2. Licensure data;
3. Adverse actions against a license or compact privilege;
4. Non-confidential information related to alternative program participation;
5. Any denial of application for licensure, and the reason(s) for such denial; and
6. Other information that may facilitate the administration of this compact, as determined by the rules of the Commission.

C. Investigative information pertaining to a licensee in any member state will only be available to other party states.

D. The Commission shall promptly notify all member states of any adverse action taken against a licensee or an individual applying for a license. Adverse action information pertaining to a licensee in any member state will be available to any other member state.

E. Member states contributing information to the data system may designate information that may not be shared with the public without the express permission of the contributing state.

F. Any information submitted to the data system that is subsequently required to be expunged by the laws of the member state contributing the information shall be removed from the data system.

Section 9. RULEMAKING

A. The Commission shall exercise its rulemaking powers pursuant to the criteria set forth in this Section and the rules adopted thereunder. Rules and amendments shall become binding as of the date specified in each rule or amendment.

B. If a majority of the legislatures of the member states rejects a rule, by enactment of a statute or resolution in the same manner used to adopt the compact within 4 years of the date of adoption of the rule, then such rule shall have no further force and effect in any member state.

C. Rules or amendments to the rules shall be adopted at a regular or special meeting of the Commission.

D. Prior to promulgation and adoption of a final rule or rules by the Commission, and at least thirty (30) days in advance of the meeting at which the rule will be considered and voted upon, the Commission shall file a Notice of Proposed Rulemaking:

1. On the website of the Commission or other publicly accessible platform; and

2. On the website of each member state physical therapy licensing board or other publicly accessible platform or the publication in which each state would otherwise publish proposed rules.

E. The Notice of Proposed Rulemaking shall include:

1. The proposed time, date, and location of the meeting in which the rule will be considered and voted upon;

2. The text of the proposed rule or amendment and the reason for the proposed rule;

3. A request for comments on the proposed rule from any interested person; and

4. The manner in which interested persons may submit notice to the Commission of their intention to attend the public hearing and any written comments.

F. Prior to adoption of a proposed rule, the Commission shall allow persons to submit written data, facts, opinions, and arguments, which shall be made available to the public.

G. The Commission shall grant an opportunity for a public hearing before it adopts a rule or amendment if a hearing is requested by:

1. At least twenty-five (25) persons;

2. A state or federal governmental subdivision or agency; or

3. An association having at least twenty-five (25) members.

H. If a hearing is held on the proposed rule or amendment, the Commission shall publish the place, time, and date of the scheduled public hearing. If the hearing is held via

405 electronic means, the Commission shall publish the mechanism for access to the electronic
406 hearing.

407 1. All persons wishing to be heard at the hearing shall notify the executive director
408 of the Commission or other designated member in writing of their desire to appear and testify at
409 the hearing not less than five (5) business days before the scheduled date of the hearing.

410 2. Hearings shall be conducted in a manner providing each person who wishes to
411 comment a fair and reasonable opportunity to comment orally or in writing.

412 3. All hearings will be recorded. A copy of the recording will be made available on
413 request.

414 4. Nothing in this section shall be construed as requiring a separate hearing on each
415 rule. Rules may be grouped for the convenience of the Commission at hearings required by this
416 section.

417 I. Following the scheduled hearing date, or by the close of business on the
418 scheduled hearing date if the hearing was not held, the Commission shall consider all written and
419 oral comments received.

420 J. If no written notice of intent to attend the public hearing by interested parties is
421 received, the Commission may proceed with promulgation of the proposed rule without a public
422 hearing.

423 K. The Commission shall, by majority vote of all members, take final action on the
424 proposed rule and shall determine the effective date of the rule, if any, based on the rulemaking
425 record and the full text of the rule.

L. Upon determination that an emergency exists, the Commission may consider and adopt an emergency rule without prior notice, opportunity for comment, or hearing, provided that the usual rulemaking procedures provided in the compact and in this section shall be retroactively applied to the rule as soon as reasonably possible, in no event later than ninety (90) days after the effective date of the rule. For the purposes of this provision, an emergency rule is one that must be adopted immediately in order to:

1. Meet an imminent threat to public health, safety, or welfare;
2. Prevent a loss of Commission or member state funds;
3. Meet a deadline for the promulgation of an administrative rule that is established by federal law or rule; or
4. Protect public health and safety.

M. The Commission or an authorized committee of the Commission may direct revisions to a previously adopted rule or amendment for purposes of correcting typographical errors, errors in format, errors in consistency, or grammatical errors. Public notice of any revisions shall be posted on the website of the Commission. The revision shall be subject to challenge by any person for a period of thirty (30) days after posting. The revision may be challenged only on grounds that the revision results in a material change to a rule. A challenge shall be made in writing, and delivered to the chair of the Commission prior to the end of the notice period. If no challenge is made, the revision will take effect without further action. If the revision is challenged, the revision may not take effect without the approval of the Commission.

Section 10. OVERSIGHT, DISPUTE RESOLUTION, AND ENFORCEMENT

447 A. Oversight

448 1. The executive, legislative, and judicial branches of state government in each
449 member state shall enforce this compact and take all actions necessary and appropriate to
450 effectuate the compact's purposes and intent. The provisions of this compact and the rules
451 promulgated hereunder shall have standing as statutory law.

452 2. All courts shall take judicial notice of the compact and the rules in any judicial or
453 administrative proceeding in a member state pertaining to the subject matter of this compact
454 which may affect the powers, responsibilities or actions of the Commission.

455 3. The Commission shall be entitled to receive service of process in any such
456 proceeding, and shall have standing to intervene in such a proceeding for all purposes. Failure to
457 provide service of process to the Commission shall render a judgment or order void as to the
458 Commission, this compact, or promulgated rules.

459 B. Default, Technical Assistance, and Termination

460 1. If the Commission determines that a member state has defaulted in the
461 performance of its obligations or responsibilities under this compact or the promulgated rules,
462 the Commission shall:

463 a. Provide written notice to the defaulting state and other member states of the
464 nature of the default, the proposed means of curing the default and/or any other action to be
465 taken by the Commission; and

466 b. Provide remedial training and specific technical assistance regarding the default.

2. If a state in default fails to cure the default, the defaulting state may be terminated from the compact upon an affirmative vote of a majority of the member states, and all rights, privileges and benefits conferred by this compact may be terminated on the effective date of termination. A cure of the default does not relieve the offending state of obligations or liabilities incurred during the period of default.

3. Termination of membership in the compact shall be imposed only after all other means of securing compliance have been exhausted. Notice of intent to suspend or terminate shall be given by the Commission to the governor, the majority and minority leaders of the defaulting state's legislature, and each of the member states.

4. A state that has been terminated is responsible for all assessments, obligations, and liabilities incurred through the effective date of termination, including obligations that extend beyond the effective date of termination.

5. The Commission shall not bear any costs related to a state that is found to be in default or that has been terminated from the compact, unless agreed upon in writing between the Commission and the defaulting state.

6. The defaulting state may appeal the action of the Commission by petitioning the U.S. District Court for the District of Columbia or the federal district where the Commission has its principal offices. The prevailing member shall be awarded all costs of such litigation, including reasonable attorney's fees.

C. Dispute Resolution

1. Upon request by a member state, the Commission shall attempt to resolve disputes related to the compact that arise among member states and between member and non-member states.

2. The Commission shall promulgate a rule providing for both mediation and binding dispute resolution for disputes as appropriate.

D. Enforcement

1. The Commission, in the reasonable exercise of its discretion, shall enforce the provisions and rules of this compact.

2. By majority vote, the Commission may initiate legal action in the United States District Court for the District of Columbia or the federal district where the Commission has its principal offices against a member state in default to enforce compliance with the provisions of the compact and its promulgated rules and bylaws. The relief sought may include both injunctive relief and damages. In the event judicial enforcement is necessary, the prevailing member shall be awarded all costs of such litigation, including reasonable attorney's fees.

3. The remedies herein shall not be the exclusive remedies of the Commission. The Commission may pursue any other remedies available under federal or state law.

Section 11. DATE OF IMPLEMENTATION OF THE INTERSTATE COMMISSION FOR PHYSICAL THERAPY PRACTICE AND ASSOCIATED RULES, WITHDRAWAL, AND AMENDMENT

A. The compact shall come into effect on the date on which the compact statute is enacted into law in the tenth member state. The provisions, which become effective at that time,

shall be limited to the powers granted to the Commission relating to assembly and the promulgation of rules. Thereafter, the Commission shall meet and exercise rulemaking powers necessary to the implementation and administration of the compact.

B. Any state that joins the compact subsequent to the Commission's initial adoption of the rules shall be subject to the rules as they exist on the date on which the compact becomes law in that state. Any rule that has been previously adopted by the Commission shall have the full force and effect of law on the day the compact becomes law in that state.

C. Any member state may withdraw from this compact by enacting a statute repealing the same.

1. A member state's withdrawal shall not take effect until six (6) months after enactment of the repealing statute.

2. Withdrawal shall not affect the continuing requirement of the withdrawing state's physical therapy licensing board to comply with the investigative and adverse action reporting requirements of this act prior to the effective date of withdrawal.

D. Nothing contained in this compact shall be construed to invalidate or prevent any physical therapy licensure agreement or other cooperative arrangement between a member state and a non-member state that does not conflict with the provisions of this compact.

E. This compact may be amended by the member states. No amendment to this compact shall become effective and binding upon any member state until it is enacted into the laws of all member states.

Section 12. CONSTRUCTION AND SEVERABILITY

529 This compact shall be liberally construed so as to effectuate the purposes thereof. The
530 provisions of this compact shall be severable and if any phrase, clause, sentence or provision of
531 this compact is declared to be contrary to the constitution of any party state or of the United
532 States or the applicability thereof to any government, agency, person or circumstance is held
533 invalid, the validity of the remainder of this compact and the applicability thereof to any
534 government, agency, person or circumstance shall not be affected thereby. If this compact shall
535 be held contrary to the constitution of any party state, the compact shall remain in full force and
536 effect as to the remaining party states and in full force and effect as to the party state affected as
537 to all severable matters.